

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Asselman	Team: Squad #04	CCRB Case #: 202103002	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 05/09/2021 6:00 PM, Monday, 05/31/2021 2:00 PM	Location of Incident: § 87(2)(b) in Brooklyn	18 Mo. SOL 11/9/2022	Precinct: 81		
Date/Time CV Reported Sun, 05/09/2021 4:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/18/2021 10:36 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Antonio Cantillo	21406	967798	081 PCT
2. POM Charles Goff	03451	960595	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Antonio Cantillo	Abuse: On May 9, 2021, Police Officer Antonio Cantillo forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . POM Charles Goff	Abuse: On May 9, 2021, Police Officer Charles Goff forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . POM Antonio Cantillo	Off. Language: On May 9, 2021, Police Officer Antonio Cantillo made offensive remarks about § 87(2)(b)	C . Substantiated
D . POM Antonio Cantillo	Off. Language: On May 31, 2021, Police Officer Antonio Cantillo made offensive remarks about § 87(2)(b)	D . Substantiated

Case Summary

On May 9, 2021, at 4:30PM, § 87(2)(b) reported this complaint to IAB via telephone. The complaint was referred to CCRB via log no. § 87(2)(b) and was received on May 18, 2021.

On May 9, 2021, at approximately 2:58pm, § 87(2)(b) called 911 to request that police officers escort him to § 87(2)(b) home, located at § 87(2)(b) in Brooklyn, to retrieve his belongings. Police Officers Charles Goff and Antonio Cantillo, both from the 81st Precinct, responded to the 911 call and removed § 87(2)(b) to the hospital (**Allegations A and B: Abuse of Authority, Exonerated**). PO Cantillo spoke to an EMT and said that § 87(2)(b) was acting “crazy,” while § 87(2)(b) was at earshot (**Allegation C: Offensive Language, Substantiated**).

On May 31, 2021, at approximately 3:40pm, PO Goff and PO Cantillo responded to a call at § 87(2)(b). The officers were in a public area of the building and § 87(2)(b) was inside a locked bathroom. § 87(2)(b) heard PO Cantillo say, “Remember that girl and her boyfriend? The crazy dude?” (**Allegation D: Offensive Language, Substantiated**).

No arrests were made, or summonses issued as a result of these incidents.

The CCRB obtained BWC footage depicting portions of both incidents (Board Review 05,14).

Findings and Recommendations

Allegation (A) Abuse of Authority: On May 9, 2021, Police Officer Antonio Cantillo forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: On May 9, 2021, Police Officer Charles Goff forcibly removed § 87(2)(b) to the hospital.

On May 9, 2021, at approximately 2:58pm, § 87(2)(b) placed a phone call to 911, to request that police officers escort him to § 87(2)(b) to retrieve his possessions from the apartment he used to share with the mother of his child, § 87(2)(b) (Board Review 01). § 87(2)(b) then went to § 87(2)(b) in Brooklyn, which is § 87(2)(b) mother’s residence. PO Gerson Abellard and PO Kurlon Parris later arrived at § 87(2)(b) and § 87(2)(b) informed them that it was he who called. PO Parris spoke with § 87(2)(b) and her mother while PO Abellard and § 87(2)(b) remained outside. § 87(2)(b) then had a phone conversation with § 87(2)(b) and she informed him that she was going to § 87(2)(b). § 87(2)(b) drove his vehicle to § 87(2)(b) entered the building and took the elevator to the § 87(2)(b) floor. When he stepped out of the elevator, PO Goff or PO Cantillo asked him if he was § 87(2)(b) and § 87(2)(b) said yes. § 87(2)(b) entered the apartment with PO Goff and PO Cantillo and began collecting his possessions. § 87(2)(b) then tried to take a microwave and a pair of Balenciaga shoes which he had purchased for and gifted to § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) had lied about purchasing those items. § 87(2)(b) stated that he had receipts for the items. PO Goff or PO Cantillo said to § 87(2)(b) “You have two minutes to get out. Get whatever you can and get out, or we’re going to call someone else over here and take you.” PO Goff or PO Cantillo also said, “We’re going to lock you up,” and, “We’re going to send you to a hospital.” § 87(2)(b) felt that PO Goff and PO Cantillo were a danger to him and called 911 to request different officers. PO Goff or PO Cantillo made a cellphone call and stated that he was going to “EDP” § 87(2)(b). PO Goff and PO Cantillo walked towards § 87(2)(b) which forced him into a corner. About ten more officers joined PO Goff and PO Cantillo inside the apartment and surrounded § 87(2)(b).

§ 87(2)(b) repeated, “All I want is my son.” § 87(2)(b) told officers not to touch him and stated that he was leaving. An officer told § 87(2)(b) that he was not leaving. § 87(2)(b) stated that he would leave the apartment without his things if necessary. PO Goff and PO Cantillo then escorted § 87(2)(b) outside the building, placed him in handcuffs, and inside an ambulance. § 87(2)(b) was transported to § 87(2)(b) Hospital, in Brooklyn.

The CCRB did not obtain an official witness statement from § 87(2)(b) who was present at § 87(2)(b) during this incident. She stated during an initial phone call with the CCRB that she did not believe that § 87(2)(b) was experiencing any emotional disturbances at the time of the incident (Board review 02).

PO Goff testified to the CCRB that on May 9, 2021, at approximately 6:00pm, he and PO Cantillo responded to a closed job at § 87(2)(b) (Board review 03). He and PO Cantillo were helping § 87(2)(b) retrieve his belongings from this location as a favor. PO Goff and PO Cantillo instructed § 87(2)(b) to retrieve his clothing from the apartment without argument. Once inside the apartment, § 87(2)(b) began to argue and yell at § 87(2)(b) went inside a room and continued to collect items. While inside this room, § 87(2)(b) informed PO Goff that he was a psychiatric patient and was taking psychotropic medications. § 87(2)(b) did not specify which medications he was prescribed. § 87(2)(b) appeared to be “on drugs of some sort,” because he was sweating. As § 87(2)(b) made his way out of the apartment, § 87(2)(b) grabbed the microwave by the cord and “ripped” it out of the electrical socket, swinging the microwave by the cord. PO Goff informed § 87(2)(b) that they were going to call an ambulance so he could be evaluated. Because of the way § 87(2)(b) held the microwave, PO Goff determined that there was a threat to safety and informed § 87(2)(b) that he would handcuff him for his and the officers’ safety. PO Goff then informed Sgt. Jared Fink over the phone that § 87(2)(b) was “out of control” and that he may “EDP him.” PO Goff did not recall Sgt. Fink’s response but said that it was most likely, “O.K. let me know.” PO Goff did not recall whether it was him or PO Cantillo who called the ambulance. Once the ambulance arrived, § 87(2)(b) climbed inside and was transported to § 87(2)(b) Hospital.

PO Cantillo’s testimony was materially consistent with PO Goff’s (Board Review 04). PO Cantillo and PO Goff both determined that § 87(2)(b) needed to be evaluated and informed § 87(2)(b) that he was going to the hospital. § 87(2)(b) was then placed in handcuffs. PO Cantillo did not recall whether it was he or PO Goff who decided to call an ambulance for § 87(2)(b) Sgt. Fink arrived at the location after the ambulance.

In BWC video recorded by PO Cantillo on May 9, 2021, § 87(2)(b) is depicted speaking loudly to § 87(2)(b) PO Goff, and PO Cantillo inside § 87(2)(b) § 87(2)(b) (Board Review 05, 06). At the 01m10s mark, § 87(2)(b) says, “You are keeping me in a corner. I am an active mental health patient, and I take medications. Psychotropic medications. Y’all making me go crazy right now. I called the ambulance and officer Goff went and called his supervisor and said he was going to arrest me, because I’m calling more police and an ambulance over here.” At the 01m45s mark, § 87(2)(b) holds a white plastic bag containing unknown items and hands it to § 87(2)(b) then strikes the bag with his right hand, causing it to fall to the ground. At the 02m19s mark, § 87(2)(b) leaves the bedroom and is followed by PO Goff and PO Cantillo. § 87(2)(b) takes a microwave and holds it by the chord which then swings near the ground and objects can be heard falling to the ground. § 87(2)(b) can be heard saying, “He’s breaking...” At the 02m54s mark, while outside the apartment, PO Cantillo says to § 87(2)(b) “You’re going to go take a ride in the ambulance,” while PO Goff places handcuffs on his hands. At the 03m04s mark, § 87(2)(b) pulls his phone out from behind him with his left hand and says into it, “They are arresting me. They are arresting me. I don’t know if I am going to the ambulance. I just want to go to the

ambulance." PO Goff says, "You keep telling us you have a mental history, so you are going to the ambulance." § 87(2)(b) says, "What are you going to do with my stuff if you take me to the hospital?" PO Cantillo says, "That is what you told us to do. Leave the stuff and take you to the hospital." § 87(2)(b) says, "I need to go to the hospital. Mom, I am- Am I going to the hospital?" PO Goff says, "Yes." § 87(2)(b) says, "Basically, they are calling the ambulance to get me evaluated." At the 07m17s mark, § 87(2)(b) asks three times, "Where is the ambulance?" PO Goff says three times, "They are coming." § 87(2)(b) says, "I need an ambulance."

The CCRB did not obtain event information pertaining to this incident.

Patrol Guide Procedure 221-13 defines an emotionally disturbed person (EDP) as "A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others." It also dictates that members of the service must have "EDP removed to hospital in ambulance."

As depicted in PO Cantillo's BWC, § 87(2)(b) stated to PO Goff and PO Cantillo that he was a mental health patient and took psychotropic medications. He also struck a plastic bag out of § 87(2)(b) hand and pulled a microwave by its cord, § 87(2)(g)

It is therefore recommended that **Allegations A and B be Exonerated.**

Allegation (C) Offensive Language: On May 9, 2021, Police Officer Antonio Cantillo made offensive remarks about § 87(2)(b)

In BWC footage recorded by PO Cantillo on May 9, 2021, PO Cantillo and PO Goff escort § 87(2)(b) out of § 87(2)(b) and inside an ambulance, through its side door. § 87(2)(b) sits inside the ambulance on a bench located immediately to the left of the ambulance door, while an Emergency Medical Technician (EMT) who later identifies himself as § 87(2)(b) stands inside the ambulance and PO Cantillo stands at the ambulance doorframe. At the 10m35s mark, while still inside the ambulance, § 87(2)(b) asks PO Cantillo, "What's the back story?" PO Cantillo steps slightly further away from his position at the ambulance door and § 87(2)(b) steps out of the ambulance. PO Cantillo and § 87(2)(b) stand right outside the ambulance, near its side door and PO Cantillo says, "He's been acting erratic and crazy calling 911 he wanted to get his shit out the apartment he didn't want to get it. Acting crazy calling 911 on himself for an ambulance. He's saying he has mental issues, and I don't know, see what he says."

Patrol Guide Procedure 203-10 prohibits members of service from "using discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability."

New York City Administrative Code 8-102 defines disability as "any physical, medical, mental or psychological impairment, or a history or record of such impairment." (Board Review 10)

PO Cantillo § 87(2)(g) stated twice that § 87(2)(b) was "acting crazy," after § 87(2)(b) informed him that he was a mental health patient and took medications. It is therefore recommended that **Allegation C be Substantiated.**

Allegation (D) Offensive Language: On May 31, 2021, Police Officer Antonio Cantillo made offensive remarks about § 87(2)(b)

§ 87(2)(b) stated to the CCRB that on May 31, 2021, at approximately 2:00pm, he was on the ground floor at § 87(2)(b) inside a bathroom. § 87(2)(b) heard PO Goff and PO Cantillo's voices outside the bathroom. He heard one of them say, "That guy's fucking nuts. They had to hold him down and shoot him up" in reference to § 87(2)(b). § 87(2)(b) exited the bathroom and saw PO Goff and PO Cantillo with two individuals he believed to be Community Affairs officers. § 87(2)(b) did not know why the officers were in the building. § 87(2)(b) did not call 911 and did not believe that § 87(2)(b) called 911.

PO Cantillo stated to the CCRB that on May 31, 2021, at approximately 2:00pm, he responded to a 911 call at § 87(2)(b). Residents on the § 87(2)(b) floor of the building informed him and PO Goff that § 87(2)(b) and § 87(2)(b) were having a loud argument in the courtyard. PO Cantillo went to the courtyard area and then the laundry and recreation area of the building, located on the ground floor, to speak with them. Officers knocked on the bathroom door to confirm the safety of its occupants. PO Cantillo saw § 87(2)(b) exit the bathroom and recognized her from the incident on May 9, 2021. PO Cantillo stood near the bathroom until § 87(2)(b) revealed that he had been hiding in it. PO Cantillo observed that § 87(2)(b) was safe and after confirming that there was not an emergency, officers left the scene. PO Cantillo denied referring to § 87(2)(b) mental state or calling him "crazy." PO Cantillo did not recall discussing § 87(2)(b) mental state with other officers. PO Cantillo did not recall at what point during this incident he learned that § 87(2)(b) was the occupant inside the bathroom. PO Cantillo was presented with his BWC footage, depicting him standing outside a door at § 87(2)(b) in Brooklyn and saying, "That guy is crazy, thank god he is not in the picture." The BWC footage did not refresh PO Cantillo's memory about referring to § 87(2)(b) as, "Crazy."

PO Goff's testimony was generally consistent with PO Cantillo's. PO Goff did not hear any officers speak about § 87(2)(b) history of being an EDP. PO Goff did not recall if he heard PO Cantillo refer to § 87(2)(b) as "crazy."

In BWC footage recorded by PO Cantillo on May 31, 2021, PO Cantillo is depicted standing outside a bathroom door in the shared recreation and laundry area of § 87(2)(b) (Board Review 07). At the 05m45s mark, § 87(2)(b) emerges from the bathroom while holding a young child. At the 06m26s mark, PO Cantillo says to PO Ethan Cedzich, "Yeah, with her a few weeks ago." ". At the 06m49s mark, PO Cantillo says, "Were you here for that day? That dude? Boyfriend is like an EDP?" At the 07m01s mark, PO Cantillo says, "No, dude remember that girl and her boyfriend, the crazy dude?" An officer says, "No." PO Cantillo says, "Dude, thank god he is out of the picture." At the 18m44s mark, § 87(2)(b) opens the door and exits the bathroom.

Patrol Guide Procedure 203-10 prohibits members of service from "using discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability."

New York City Administrative Code 8-102 defines disability as "any physical, medical, mental or psychological impairment, or a history or record of such impairment."

PO Cantillo stated to the CCRB that he had recognized § 87(2)(b) from the incident that occurred on May 9, 2021. He also stated to other officers that § 87(2)(b) was determined to be an "EDP."

§ 87(2)(g)
It is therefore recommended that **Allegation D** be **Substantiated**.

• § 87(2)(b)

[REDACTED]

[REDACTED]

■ [REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

- As of October 7, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Page 5

